NHAKA CHIKOO
and
ZILPHA MAUNGA
versus
MASTER OF THE HIGH COURT N.O
and
OLIVER MASOMERA N.O (In his official capacity as the
Executor Dative of the estate Late Pius Mutyasira DR MRE 288/23
and
RONALD MUTYASIRA
and
CECILIA M. KASHANJE
and
ELITHIA YEKEYE
and
VILLAH MUTYASIRA
and
DERRON MUTYASIRA
and
MICHELLE MUTYASIRA
and
SHARLENE MUTYASIRA
and
VARAIDZO WENDY MUTYASIRA
and
BRENDON MUTYASIRA
and
TAKUNDA MUTYASIRA

HIGH COURT OF ZIMBABWE
TSANGA J
HARARE; 3 March & 7 May 2026

Opposed Court Application for review

R Mabwe with J Sande, for Applicants
No appearance for 1st & 2nd Respondents
(cited in official capacities)
Barred: 3rd, 4th, 5th & 10th Respondents
TL Mapuranga for 6th & 7th Respondents
No appearance for 8th , 9th, 11th & 12th Respondents

TSANGA J:
Introduction

This is an application to review and to set aside the decision of the Master of the High Court ("the Master") in accepting the will of the late deceased Pious Mutyasiri notwithstanding its non-compliance with certain execution formalities under the Wills Act. The Will was executed in 2003 and lodged with the Master on 9 of June 2003. The testator died on 7 July 2023. The non-compliance was in that the four paged will, had not been signed by the testator and his two witnesses on the third page of the will. The gravamen of the complaint is that the Assistant Master initially recommended that the will, which was non-compliant should not be accepted. The following day, upon complaint by a family member, the Assistant Master on behalf of the Master had then accepted that same will.

The applicants, who describe themselves as customary law wives of the deceased, contend that the Assistant Master had correctly rejected the will on the basis that it was not signed by the deceased and both witnesses on one of the pages, and that the Assistant Master was not entitled thereafter to accept it on behalf of the Master. They seek an order declaring that the deceased died intestate and that his estate be administered in terms of customary law. The deceased was in a civil monogamous marriage and recognized his lawfully registered wife, Villa Mutyasira in that will together with named children as beneficiaries. She is the sixth Respondent in this matter. The seventh Respondent is her son. It is alleged that he subsequently entered into other unions and at the time of his death had five wives and seventeen children. However, there is no evidence that he amended or revoked the will to reflect changed any circumstances.

Grounds of review

The grounds of review are as follows:

1. The first Respondent committed a gross, substantial and material error at law that manifested in a miscarriage of justice by accepting the provided will for the administration of Estate Late Pius Mutyasira when the will did not comply with the formalities prescribed by s 8 of the Wills Act [*Chapter 6:06*].

2. The first Respondent committed a gross, substantial and material error at law that manifested in a miscarriage of justice by accepting the provided will for the administration of

Estate Late Pius Mutyasira when the will disinherited the Applicants, in violation of the Wills Act [*Chapter 6:06*].

3. The decision by the1st respondent to accept the will was grossly unreasonable in light of the fact that the recommendations made by the Assistant Master were against accepting the said will and the fact that the will did not comply with formalities under section 8 of the Wills Act.

4. The first Respondent acted contrary to the dictates of the Administrative Justice Act by accepting the will without stating the reasons for having accepted the will in light of the recommendation by the Assistant Master.

The matter was argued by counsel for the applicants and for the sixth and seventh respondents who are beneficiaries under the impugned will.

The submissions

The core argument by Ms *Mabwe* on behalf of the applicants was that once the Assistant Master had recommended that the will not be accepted, that decision could not be revisited and a contrary conclusion arrived at. She submitted that the Master is given an opportunity to make a decision once and for all, either accepting or rejecting the Will. The Master cannot review their own decision or act as an appellate court. Having decided on 8 August not to accept the Will she argued that he had become functus. To the extent that the Master acted contrary to the law, she relied on consequence spelt out in *Muchini* v *Adams* 2013 (1) ZLR 67 to the effect that, that which is done in contravention of statute is null and void. She further argued that even assuming that the Master could change his/ her decision and this could not be done without calling all the beneficiaries, and, that the import of a decision made without a party being heard is no decision at all. The Master is said not to have indicated to the parties or beneficiaries as to why the decision to accept the will was made.

Mr *Mapuranga* on behalf of the sixth and seventh Respondents emphasised that there are only four grounds of review and that none of the grounds centred on the Master having changed his mind. He further highlighted that there was a role played by an Assistant Master and there was a role played by the Master. With respect to the role played by the Assistant Master, he emphasised that the conclusion is a mere recommendation as opposed to a decision. To the extent that what the Master was faced with was a mere recommendation he insisted that the Master had a right to reject or accept that recommendation. The Master's

decision to accept was the actual decision as opposed to the recommendation. In essence, Mr *Mapuranga* treated the Assistant Master and the Master as having been two distinct individuals. Whilst the respondents had initially raised issues of joinder of other beneficiaries as well as forum shopping as preliminary points, these were not motivated at the hearing and were deemed abandoned as the matter was argued on merits.

He stressed that the will was in fact largely compliant save for the single page, which in his view was not materially dispositive could even be severed if need be. As such, he stood firm that the discretion was open to the Master to accept the will. He distinguished this case from that of *Silence Mubariki* v *Master of the High Court & Ors* HH 531/23 where fraud had been alleged in the execution of the will itself. As for the fact that the testator had left out others in his will, he pointed to the case of *Chigwada* v *Chigwada & Ors* 2020 (2) ZLR 1353 (S) on freedom of testation. He equally stated that the applicants were at liberty to seek reasons from the Master but that in any event those reasons had been provided and as such none of the grounds of review in this matter were merited.

In response, Ms *Mabwe* highlighted that in terms of Rule 2 of the High Court Rules 2021, Master means Master or Assistant Master. In this instance, she also pointed out that it was in fact the same person who had made the recommendation not to accept the will who had on the following day gone on to accept that same will as the Master. Further, she stated that the Master had not responded when asked whether the will had been accepted, despite reasons being a requirement in administrative matters.

The central issue for determination is therefore whether the Assistant Master on behalf of the Master acted unlawfully in accepting a will that the same had earlier been recommended for rejection due to non-compliance with formalities.

The legal Framework

The Wills Act [*Chapter 5:06*] prescribes certain formalities for the valid execution of a will, include that it must be written and signed by the testator and attested to by two witnesses present at the same time who must also sign in the presence of the testator on every page of the will.

Where a will does not comply fully with all the formalities set out in s 8 (1) and (2) of the Wills Act it can nonetheless still be accepted by the Master if he is satisfied that the document in question was executed by the testator and was intended to be his will. The Master is fully authorised to do so by s 8(5) is couched as follows:

> "(5) Where the Master is satisfied that a document or an amendment of a document which was drafted or executed by a person who has since died was intended to be his will or an amendment of his will, the Master may accept that document, or that document as amended, as a will for the purposes of the Administration of Estates
> Act [*Chapter 6:01*] even though it does not comply with all the formalities for
> (*a*) the execution of wills referred to in subsection (1) or (2); or
> (*b*) the amendment of wills referred to in subsection (2), (3) or (4) of section *nine*."

In other words, the Master accepts a non-compliant document only if he is satisfied that it was drafted ad executed by the deceased and that it was intended to be his will. That is the test to be applied in any situation where the Master considers a Will, which is not fully compliant, for acceptance. This provision has been fully discussed in cases such as *Mujuru NO & Ors* v *The Master & Ors 2008 (2) ZLR 308 (H) Filon and another* v *Sibanda & Ors 2011 (1) ZLR 458 (H); Akinjide & Anor* v *The Master & Ors 2*020 (2) ZLR 380 (H) in terms of the role of the Master in accepting a non-compliant will.

Factual Analysis

Factual Analysis

The will was drafted prior to all the alleged subsequent customary marriages involving the applicants and the 5th Respondent, who claim to be wives of the deceased. While such customary unions could not legally co-exist alongside a civil marriage, the issue before the Court is not the validity of those marriages. Rather, the central question is whether the will by which the deceased bequeathed his estate to his legal wife and named children is valid.

In this matter, the greater part of the will complied with the requisite formalities. The only defect relates to the third page, which was not signed; instead, the testator and witnesses appended their signatures on the fourth page. The fourth page contains only those signatures. Apart from this irregularity, there is no indication that the testator did not draft the will or that he lacked the intention for it to operate as such.

Dissatisfaction arising from exclusion as a presumptive beneficiary, as reflected in the second ground of review, is not a basis to invalidate the will. Alternative remedies exist, including recourse to section 10 of the Deceased Persons Family Maintenance Act [*Chapter 6:03*].

Regarding the third ground of review, the contention that the Assistant Master reversed an earlier recommendation is misplaced. That earlier position was merely preliminary. An internal recommendation to reject a will does not create a legal bar. The

Master retains the authority to reconsider such a view prior to making a formal determination, particularly where additional representations are received. Revising a non-final position is an ordinary exercise of administrative discretion and does not, in itself, suggest impropriety. In this case, there was no inconsistency with statutory requirements, nor any evidence of bias or undue influence only a reconsidered view reached within a short period after further engagement.

The inquiry ultimately turns on whether the will satisfies execution requirements, not on whether an earlier internal recommendation differed. The Assistant Master, acting on behalf of the Master, is empowered and indeed obliged to independently assess whether the document reflects the deceased's testamentary intentions. Where satisfied that the document was intended to operate as a will, it may be accepted notwithstanding technical defects.

The unsigned page is not dispositive, and there is no evidence of alteration, fraud, or incompleteness. Nor is there any indication that the deceased revoked the will; on the contrary, it remained operative until his death. The critical issue is whether the Master's acceptance of a formally imperfect will complies with the governing legal framework under the Wills Act [*Chapter 7:05*].

The placement of signatures on a separate page does not, without more, invalidate the will particularly where the third and fourth pages are clearly connected and the signatures unmistakably relate to the preceding text.

The applicants' argument is not that the will fails to reflect the deceased's intention, but that the Assistant Master should have adhered to an earlier position. That is not a valid ground of review. The test on review is not whether the Court would have reached a different conclusion, but whether the decision was unlawful, irrational, procedurally unfair, or made for an improper purpose.

Here, the Master applied the correct legal principle: substantial compliance, coupled with clear testamentary intention, may justify acceptance of a formally defective will. The decision was rationally connected to the information before him. Acceptance of the will, despite a technical defect on a non-dispositive page, was neither unlawful nor irrational. There is no evidence of bias, bad faith, or jurisdictional error. The Court cannot declare intestacy merely because certain parties would prefer the application of customary law.

As to the reasons for accepting the will, the Master notes in the estate report that the decision was communicated to all interested parties on 10 August 2023, following discussions held the previous day. The position reached on 9 August was merely a recommendation; the communication of 10 August conveyed the final decision. That decision

must be understood in light of the preceding discussions between those supporting and opposing acceptance. The nature of the defect was well understood, and, in the context of section 8(5) of the Wills Act, the implicit basis for acceptance was that the document was deemed to represent the deceased's final testamentary intentions. The Master further records (at page 279 of the record) that no request for detailed reasons was made at the time. It was only in January 2024 that the applicants' legal practitioner sought to pursue the matter further. In these circumstances, the Master cannot be faulted for not providing fuller reasons earlier.

Order

1. The application to review and set aside the decision of the Master is dismissed.
2. The will as accepted by the Master remains valid for purposes of the administration of the deceased estate.
3. Costs follow the result.

TSANGA J:……

Tarugarira Sande Attorneys: Applicants' Legal Practitioners
Mugadza Chinzamba Legal Practitioners: 6th & 7th Respondents' Legal Practitioners